

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC,
Complainant,

v.

**EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD.,
EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND YANG MING MARINE
TRANSPORT CORPORATION,**

Respondents.

COMPLAINANT’S FOURTH MOTION TO EXTEND DEADLINES

Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”), by its undersigned counsel and pursuant to 46 C.F.R. §§ 502.12, 502.69, 502.71, and 502.102, respectfully moves for a four-week extension of each deadline set in the Third Amended Scheduling Order entered July 20, 2026. Good cause exists because NBG has continued its diligent and good faith efforts for three former NBG employees whom NBG subpoenaed to make themselves available for deposition. One of the three confirmed a date, prepared with counsel twice, and then did not appear; the other two have not responded to their subpoenas or to subsequent outreach, although they made themselves available for deposition in the related proceeding against OOCL. The testimony of all three is necessary to NBG’s case, and none of the three former NBG employees is within NBG’s control. Counsel have conferred, and Respondents oppose the extension requested here. In support of this Motion, NBG states as follows:

I. The Current Schedule

1. On July 20, 2026, the Presiding Officer entered the Third Amended Scheduling Order, which set the following deadlines:

CURRENT DEADLINE	EVENT
August 26, 2026	Complete depositions of fact witnesses
September 11, 2026	Disclosure of initial expert reports, if any
September 11, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
September 24, 2026	Disclosure of rebuttal expert reports, if any
October 2, 2026	Complete expert depositions
October 2, 2026	Close of discovery
October 30, 2026	Complainant's brief, proposed findings of fact, and appendix due
December 1, 2026	Respondents' opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, and appendix due
December 15, 2026	Complainant's reply brief and response to Respondents' proposed findings of fact due

2. The Third Amended Scheduling Order resolved the Parties' Revised Third Joint Motion to Extend Deadlines. The Parties had jointly asked that the fact-deposition deadline move sixty days, to September 18, 2026. The Presiding Officer granted a shorter extension, to August 26, 2026, and sequenced the remaining deadlines from that date. *See* Third Am. Scheduling Order at 1–2.

II. Good Cause Exists To Extend the Current Deadlines

3. Rule 102(a) provides in relevant part: “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause. Motions must set forth the reasons

for the request and be received at least seven (7) days before the scheduled filing date.” 46 C.F.R. § 502.102(a). The reasons set out below constitute good cause.

A. Three Subpoenaed NBG Witnesses Have Failed To Make Themselves Available

4. NBG identified three former employees whose testimony is necessary to its claims: Albert Josiah, Panadda White, and Diana Castro. Each held transportation and shipping roles at NBG during the period at issue and each has direct knowledge of how NBG’s transportation department operated, the relationship NBG had with the Respondents, the Respondents’ acts and omissions, and NBG’s steps to mitigate Respondents’ unlawful acts and omissions. Each has left NBG and none are subject to NBG’s direction or control: NBG cannot secure the attendance of any of them by virtue of an employment relationship. The Parties accordingly sought and served subpoenas on each of the three under Rules 131 and 134. *See* 46 C.F.R. §§ 502.131, 502.134.

5. *Mr. Josiah.* Mr. Josiah agreed to be deposed and a date was confirmed for August 18, 2026. He then conferred with NBG’s counsel in preparation for that deposition on two separate occasions, the second on the day immediately before the deposition was to proceed. Notwithstanding those confirmations and that preparation, Mr. Josiah did not appear. Since his non-appearance, Mr. Josiah has stated that he remains willing to be deposed. Counsel for NBG and counsel for Respondents have canvassed the dates on which Mr. Josiah is available, and no date is mutually available to Mr. Josiah and to Respondents’ counsel before the end of September 2026. His deposition therefore cannot be completed by the current August 26, 2026 deadline, nor within a shorter extension of it.

6. *Ms. White and Ms. Castro.* The Parties served subpoenas on Ms. White and Ms. Castro but neither has responded. Neither has responded to any of NBG’s subsequent outreach, which has included multiple telephone calls and emails. NBG is continuing to pursue both witnesses and is

prepared to seek enforcement should that become necessary. *See* 46 C.F.R. § 502.136 (“In the event of failure to comply with any subpoena or order issued in connection therewith, the Commission may seek enforcement as provided in § 502.150(b).”). Enforcement, however, cannot be initiated and completed within the time the current schedule leaves. Both of these witnesses made themselves available for deposition, and were deposed, in the related proceeding against OOCL.

7. The testimony of these three witnesses is necessary and is not cumulative of testimony available from any other source and the knowledge and experience of these witnesses is unique when it comes to how NBG’s transportation department operated, the relationship NBG had with the Respondents, the Respondents’ acts and omissions, and NBG’s steps to mitigate Respondents’ unlawful acts and omissions. Proceeding to expert disclosures and briefing without their testimony would require NBG to submit proposed findings of fact on an incomplete factual record, on issues central to its claims.

B. NBG Has Been and Remains Diligent

8. NBG has taken every step within its power to make these witnesses available. It located each witness, obtained current contact information and made contact through email and videoconference, sought and served subpoenas, followed up repeatedly through multiple channels, offered to accommodate each witness’s schedule and location, and coordinated proposed dates with Respondents’ counsel. NBG’s counsel devoted two preparation sessions to Mr. Josiah in the days immediately before his scheduled deposition, and NBG has kept Respondents apprised of the status of each witness throughout. What stands in the way of these depositions is not any lack of

diligence by NBG; it is the conduct of three individuals over whom NBG has no control and no means of compulsion apart from the Commission's subpoena power.¹

9. This request is being made as soon as possible. In the days leading up to this request, counsel for both parties have diligently discussed a resolution to these issues. Until today, both Parties' counsels believe in good faith that it was possible to negotiate either the use of written testimony or reliance only on documents. Only today, August 26th, did it become clear that there was no mutually agreeable path forward on either of those points, forcing NBG to move for the instant relief as quickly as possible in order to preserve its access to necessary testimony. NBG remains aware of the Commission's rules, and the Presiding Officer's Orders, and has worked expediently to attempt to avoid the need for the present motion and sincerely apologizes for any inconvenience.

C. The Requested Extension Is Modest and Narrowly Directed

10. NBG requests four weeks, twenty-eight days, on each deadline. That is well short of the sixty days the Parties jointly requested in the Third Joint Motion to Extend Deadlines and short of the approximately thirty-seven days the Presiding Officer granted in the Third Amended Scheduling Order. No hearing date is affected, and briefing would conclude on January 19, 2027.

11. NBG does not seek this extension in order to expand the scope of discovery. It seeks the extension for the limited purpose of completing the three depositions described above and permitting the deadlines sequenced from the fact-deposition date to move with it. The Parties' commitment to narrow the issues by stipulation remains in place, and NBG will continue to work toward a stipulated set of facts. *See* Third Am. Scheduling Order at 1. However, transcripts from

¹ If the extension is not granted, opposing counsel still plans to depose NBG's corporate representative on September 2nd, pursuant to agreement of the Parties and taking into account the deponents' schedule.

depositions in previous NBG cases which describe NBG's shipping practices are not available in the same way that transcripts about the Respondents from the BBB cases are available. Thus, a similar stipulation is not sufficient.

D. Reservation of Rights Regarding Written Testimony

12. NBG's objective is oral deposition testimony, and this Motion is directed to obtaining it. If, notwithstanding the extension and NBG's continued efforts, any of the three witnesses cannot be deposed orally within the extended period, NBG reserves all rights to obtain that witness's testimony by any other means available under the Commission's rules, including by written questions. *See* 46 C.F.R. § 502.144(a)(1) ("A party may, by written questions, depose any person, including a party, without leave of the presiding officer except as provided in paragraph (a)(2) of this section.").

13. Respondents take the position that a witness's failure to respond to a subpoena forecloses written testimony from that witness as well. NBG does not share that view. NBG does not ask the Presiding Officer to resolve that question in connection with this Motion, and nothing in this Motion, or in any order granting it, should be construed as a waiver of NBG's position or of any right to pursue written testimony should the need arise.

III. Proposed Amended Schedule

14. NBG respectfully requests the following amended schedule:

PROPOSED DEADLINE	EVENT
September 23, 2026	Complete depositions of fact witnesses
October 9, 2026	Disclosure of initial expert reports, if any

PROPOSED DEADLINE	EVENT
October 9, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
October 22, 2026	Disclosure of rebuttal expert reports, if any
October 30, 2026	Complete expert depositions
October 30, 2026	Close of discovery
November 30, 2026	Complainant's brief, proposed findings of fact, and appendix due
January 4, 2027	Respondents' opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, and appendix due
January 19, 2027	Complainant's reply brief and response to Respondents' proposed findings of fact due

15. Each discovery deadline above moves exactly twenty-eight days. The three briefing dates preserve the intervals the Presiding Officer set in the Third Amended Scheduling Order, where she extended the briefing dates “to allow the typical four-week periods after the close of discovery and after submission of Complainant’s initial brief, with an additional two days for Respondent’s opposition to account for the two federal holidays in November.” Third Am. Scheduling Order at 1. Applying those same intervals from the proposed October 30, 2026 close of discovery, Complainant’s brief falls on Sunday, November 29, 2026 and rolls to Monday, November 30, 2026; Respondents’ opposition falls on Friday, January 1, 2027, a federal holiday, and rolls to Monday, January 4, 2027; and Complainant’s reply falls on Monday, January 18, 2027, a federal holiday, and rolls to Tuesday, January 19, 2027. *See* 46 C.F.R. § 502.101 (“If the last day is a Saturday, Sunday, or Federal holiday, the time period continues to the next day that is not a Saturday, Sunday, or federal holiday.”).

IV. Conferral

16. Pursuant to Rule 71(a), counsel for NBG conferred with counsel for Respondents multiple times between August 24th and August 26th (including a Zoom meeting on the 24th) in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. *See* 46 C.F.R. § 502.71(a). Respondents oppose the four-week extension requested in this Motion. Respondents also disagree that written testimony from these witnesses would be inappropriate in the event that oral testimony is unavailable, but that disagreement does not bear on the extension itself.

V. Conclusion

17. WHEREFORE, NBG respectfully requests that the Presiding Officer grant this Motion and enter a Fourth Amended Scheduling Order adopting the deadlines set out in Paragraph 14.

Dated: August 26th

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon all parties of record in this proceeding by electronic mail, in accordance with 46 C.F.R. §§ 502.114 and 502.117, as follows:

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Dated: August 26th

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